

Reva Devi vs Nanaji Bhat on 16 December, 2019

Author: Sindhu Sharma

Bench: Sindhu Sharma

HIGH COURT OF JAMMU AND KASHMIR
AT JAMMU

CTA No. 33/2016
IA No. 01/2016

Reva Devi

....Petitioner(s)

Through:- Mr. Ankush Manhas, Advocate.

V/s

Nanaji Bhat

.....Respondent(s)

Through:- None.

CORAM : HON'BLE MRS. JUSTICE SINDHU SHARMA, JUDGE

ORDER

1. Petitioner seeks transfer of petition filed under Section 9 of the Hindu Marriage Act for restitution of conjugal rites titled „Nanaji Bhat v. Reva Devi from the Court of learned Additional District Judge (Matrimonial Cases), Jammu to the Court of competent jurisdiction at Bhandarwah.

2. It is submitted that the marriage between the parties was solemnized in the year 2009 and out of the wedlock, one son, namely, Ayush, was born, who is under the care and guardianship of the petitioner. Petitioner and son of the parties are residing with the parents of the petitioner at her parental house at Butla Sartinagal, Tehsil, Bhandarwah. It is submitted that matrimonial discord arose between the parties and the petitioner was constrained to file a petition under Section 488 Cr.P.C in the court of learned Special Mobile Magistrate, Bhandarwah. This petition for maintenance was disposed of on the basis of mutual compromise between the parties and the respondent was directed to pay Rs.4000/- per month to the petitioner and her minor son.

3. Since the petitioner along with her son is residing at Bhandarwah, which is 250 Kms away from Jammu. She cannot afford to travel this long distance on each and every date leaving behind her minor son to pursue this petition at Jammu.

4. This Court had issued notice to the respondent on 20.09.2016 and directed to stay further proceedings in the petition under Section 9 of the Hindu Marriage Act. Thereafter Mohd. Latief Malik, Advocate had filed a Power of Attorney on behalf of the respondent but on 31.03.2017 there was no representation on behalf of the parties. Similarly on 22.05.2018, there was no representation on behalf of the respondent and on 19.11.2019, this Court had issued notice to the parties and their counsels. There is no representation on behalf of the respondent when the matter was taken up today.

5. In case of matrimonial cases, it has been held time and again that it is the convenience of the wife which is to be seen. In *Anupama Patil v. Nataraj Veerangaounda Patil*, 2018 (5) SCC 354, the Apex Court has held as under:

"As is evident from the cases referred to above, the principle of law with regard to transfer of cases especially regarding matrimonial disputes is quite settled, where consistent opinion is that it is always the convenience of wife which has to be given due weightage for ordering the transfer of proceedings at or near the place where the wife is residing."

6. In view of the above and the fact that the petitioner is residing with her parents along with her minor child at Bhaderwah, it would be difficult for her to travel at a long distance on each and every date of hearing to pursue this matter. Accordingly, prayer of the petitioner is accepted and the application is allowed. Petition under Section 9 of the Hindu Marriage Act for restitution of conjugal rites, titled, „Nanaji Bhat v. Reva Devi in File No. 416/HM Act pending adjudication in the court of learned Additional District Judge (Matrimonial Cases), Jammu is ordered to be transferred to the court of learned Principal District Judge, Bhaderwah. Trial court is directed to transmit the record of the aforesaid file to the transferee court.

7. The parties to the litigation shall appear before the court of learned Principal District Judge, Bhaderwah on 07.02.2020. In the event of non-appearance of any of the parties on the date fixed for their appearance before the learned Principal District Judge, Bhaderwah, they be summoned by issuing notice.

8. Copy of the order be sent to both the courts.

9. Disposed of along with connected IA.

(Sindhu Sharma) Judge JAMMU 16 .12.2019 Pawan Chopra Whether the order is speaking : Yes/No
Whether the order is reportable : Yes/No